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Case Number: 24NNCV05579 Hearing Date: September 11, 2026 Dept: T

Mansoor Shams, an individual vs. Vons,
an unknown entity, et al.

Motion for

Summary Judgment

Moving Party: Defendants

The Vons Companies, Inc. and Ventura Flores

Responding Party: Plaintiff

Mansoor Shams

Tentative Ruling: Continued

BACKGROUND

This is a premises liability and negligence action arising from an alleged slip and fall incident on November 20, 2022. This action is brought by Plaintiff Mansoor Shams ("Plaintiff") against Defendants The Vons Companies, Inc., erroneously sued as Vons, an unknown entity, ("Vons") and Ventura Flores ("Flores") (collectively "Defendants").

Defendants

now move for summary judgment.

Plaintiff opposes, and Defendants reply. The Court also exercises its

discretion to consider Plaintiff's late-filed opposition and supporting papers. (Cal. Rules of Court, rule 3.1300(d).)

MOVING

PARTY POSITION

Defendants

argue that Plaintiff's negligence and premises liability causes of action fail as Plaintiff cannot show that Defendants breach a duty that caused his injury. There is no admissible evidence showing that a dangerous condition existed at the time of Plaintiff's alleged fall or that the fall was caused by such a condition.

OPPOSITION

In

an untimely opposition, Plaintiff initially contends that Defendants failed to shift the burden of proof to Plaintiff on the issues of breach of duty and causation based on the submitted evidence.

Even if the burden of proof shifted, Plaintiff contends that triable issues of material fact exist as to whether the floor was slippery at the time of Plaintiff's alleged fall and caused Plaintiff to fall. Plaintiff further contends that Defendants' purported failure to preserve or produce the relevant surveillance footage should be inferred against them by the trier of fact.

Plaintiff

also makes an untimely continuance request under Code of Civil Procedure section 437c(h) based on contemplated depositions of Vons' current and former employees and of its person most knowledgeable regarding preservation of surveillance video footage.

REPLY

Defendants initially respond

that Plaintiff's opposition was untimely and that the testimony of his expert Mark Burns regarding the slip-resistance of the subject floor is improper and without foundation. Defendants also respond that Burns is not an expert in security surveillance and offers foundationless opinions on this issue.

Defendants further respond that Plaintiff has failed to submit any credible evidence demonstrating that they caused or contributed to the subject incident.

ANALYSIS

I.

Legal

Standard

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Ibid.; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474 [summary judgment standards held by Aguilar apply to summary adjudication motions].) Further, in line with Aguilar v. Atlantic Richfield Co., “[o]n a motion for summary adjudication, the trial court has no discretion to exercise. If a triable issue of material fact exists as to the challenged causes of action, the motion must be denied. If there is no triable issue of fact, the motion must be granted.” (Fisherman’s Wharf Bay Cruise Corp. v. Superior Court (2003) 114 Cal.App.4th 309, 320.)

“On

a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [cleaned up].)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility.” (Id. at p. 840 [cleaned up]; see, also, Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

II. Evidentiary

Objections

The Court declines to rule on the parties’ evidentiary objections, as they have no effect on the ruling herein.

III. Discussion

Initially, the Court notes that Plaintiff has requested relief under Code of Civil Procedure section 437c(h), and submitted the declaration of his counsel, attorney Omid Khorshidi, as support for the requested relief. Under Section 437c(h), “[i]f it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.”

In support of this request, Khorshidi declares as follows:

As of the undersigned date, my office is presently meeting and conferring with Defendants’ counsel to schedule the depositions of Vons employees present at the subject store at the time of the incident. This is a group of approximately 60 employees, though after meet and confer, Plaintiff has agreed to begin with courtesy clerks and front-end supervisors who were working in the incident area during the one hour before and after the incident, as well as any employee who allegedly swept in that area during this timeframe, without waiving his right to depose additional employees if necessary. This is a group of 17 employees, including 3 former employees who defense has indicated that they will provide the last known contact information

for to allow for subpoenas to be issued. These employee depositions are necessary and the employees are potentially critical witnesses given the lack of evidence produced by defense in this case to date. The employees may all be witnesses to the subject incident itself, have knowledge regarding the presence of a substance on the ground, inspections and cleaning, and the events leading up to the incident and subsequent to the incident. My office began meet and confer with Defendants' counsel regarding these depositions on June 24, 2026, the meet and confer has been consistent since that date, and meet and confer remains ongoing regarding the scope of the depositions and whether they will be conducted in person or remotely.

(Khorshidi

Decl. ¶ 17.) In addition, Khorshidi

declares the following: "Plaintiff has been diligent in pursuing discovery in this case, including personally serving initial written discovery to Defendant Vons on December 27, 2024, before Vons Answered on or about January 9, 2025, and has actively pursued discovery from that time to the present, including bringing prompt motions to compel where warranted as reflected in the Court's record. Given the foregoing, if the Court is not inclined to deny Defendants' Motion on the merits, Plaintiff respectfully requests that Defendants' Motion be denied or continued on the basis that further essential facts exist but cannot be presented at the time of Opposition, pursuant to California Code of Civil Procedure § 437c(h)." (Id. ¶ 19.)

Given the declared existence of 17

identified current and former employees of Vons "who were working in the incident area during the one hour before and after the incident, as well as any employee who allegedly swept in that area during this timeframe," as well as the meet and confer efforts recently made by Plaintiff to obtain this evidence through noticing the depositions of said employees, Plaintiff had shown that facts essential to justify his opposition to the instant motion may exist by way of this proposed discovery, including facts concerning the existence of the alleged condition at the time of the incident and Vons' actual or constructive knowledge of this condition based on its routine inspection and cleaning procedures at that time. Accordingly, as the Court finds that the Khorshidi declaration met Section 437c(h)'s requirements, the Court shall grant Plaintiff's request for a continuance of the instant hearing. (Bahl v. Bank of America (2001) 89 Cal.App.4th 389, 395–96, citation omitted ["The

drafters' inclusion of the italicized words 'may' and 'shall' leaves little room for doubt that such continuances are to be liberally granted. Indeed, as one court noted, 'an opposing party can compel a continuance of a summary judgment motion' by making a declaration meeting the requirements of section 437c, subdivision (h)."]; accord *Hamilton v. Orange County Sheriff's Dept.* (2017) 8 Cal.App.5th 759, 765.)

Therefore,
the motion for summary judgment is continued.

RULING

Defendants'

Motion for Summary Judgment is CONTINUED to 12/11/2026 at 1:30 PM in Department T at Alhambra Courthouse. Plaintiff to file a supplemental brief by November 25, 2026, and Defendants to file a reply by December 3, 2026.

On its own motion,
the Court also CONTINUES the Final Status Conference to March 12, 2027, at 8:30 a.m. and the Non-Jury Trial to March 22, 2027 at 8:30 a.m.